

SMHYDRAULICS SARL

RCCM: 20-B-00332
 IDNAT: 6-83-N61144 U
 NIF: A2038546W
 Avenue Shangungu N°5, Q/Industriel
 C/Lubumbashi
 Lubumbashi
 Democratic Republic of the Congo
 Email: procurement@sm-hydraulics.com

SUPPLIER

Boost Info
 05, Av Shangungu , Industrielle
 SMH 7010 7010
 Democratic Republic of the Congo
 ☎ 0971403075
 pascalmmp@gmail.com
 VAT: TVA

Purchase Order #PO 2026-3137

Order Date: 04/08/2026	Delivery Date: 04/08/2026	Buyer: Pascal MITEWU
Requester: -	Payment Terms: -	Supplier Reference: BOOST-04-07-001

DESCRIPTION	QTY	UNIT PRICE (\$)	AMOUNT (\$)
[16SE100K] CAMSHAFT 16SE100K	1.00 Units	12,313.00	12,313.00
[12SE663U] KIT,JOINT/GASKET	1.00 Units	6,200.00	6,200.00

HYDRO-MECHANICAL SERVICE
SMH SARL
 RCCM:20-B-00332
 ID NAT:6-83-N61144U
 NIF:A2038546W



SUBTOTAL	18,513.00
VAT	2,962.08
ORDER TOTAL (\$)	21,475.08

**GENERAL TERMS AND CONDITIONS OF PURCHASE SMHYDRAULICS
SARL**

I. SCOPE OF APPLICATION

The purpose of these general terms and conditions of purchase is to define **SMHYDRAULICS'** expectations regarding the conditions of purchase of products and/or services. They are proposed as part of negotiations with the Supplier to define the terms and conditions that will govern SMH's orders. They constitute a contractual document when accepted by the Supplier either as they stand or supplemented or amended by an addendum signed by the parties.

II. ACCEPTANCE OF THE ORDER

The order issued by SMH should be deemed to have been accepted by the Supplier upon the occurrence of the following events:

Receipt by SMH of the order acknowledgement signed by the Supplier, without modification, within two days of the date of receipt of the order

Upon execution of the order by the Supplier without written reservation on its part regarding the contractual documents within the specified time frame.

III. PRICE AND PAYMENT TERMS

The price to be paid is set out on the order form (hereinafter referred to as the Order Form), including taxes at the rate in force when the corresponding invoice is issued. It is firm and non-revisable. This price includes all costs and expenses, including taxes, duties and charges incurred by the Supplier for the sale of the products and/or the provision of services. The parties expressly exclude the application of the provisions of Article 1888 of the Civil Code.

The payment period for the Supplier's invoices shall be 30 to 45 days from the date of issue of the invoice.

In addition to the legal and regulatory information, the Supplier undertakes to include the following information on all invoices in it issues:

All invoices must be sent to the following address:

SMHYDRAULICS SARL

accounting@sm-hydraulics.com

5, Avenue SHANGUNGU, Q/ INDUSTRIEL

C/ KAMPEMBA, L'SHI DR Congo

Order Number:

Company name - Address - VAT number

These details are essential for your identification.

Description of work/goods delivered - Quantity invoiced

In the event of re-invoicing items subject to different VAT rates, each rate must appear on the invoice. In the event of exemption, specify the reference to the provision.

Total amount excluding VAT, VAT amount and total amount including VAT

Bank details for payment

The invoice must be denominated in the same currency as our order.

IV. DELIVERY

All deliveries of products or services must be accompanied by a delivery note containing the following information:

Order number

Order date

Product reference

Description of the product or service as mentioned in the order

Declaration of conformity, if applicable

Quantity delivered and, where applicable, serial number and individual number of the products

Number of packages, if applicable

If there is a customs document and transport document that complies with the regulations in force, as well as any other document required for customs clearance operations in the context of imports

Unless otherwise specified in the order, the product will be delivered to SMH's premises.

SMH's acceptance of the products or services shall take place at the time of delivery, where applicable after completion of their installation or commissioning, it being specified that this acceptance does not constitute final acceptance by SMH, which reserves the right to refuse any product or service that does not comply with the order.

The Supplier shall remain responsible for the conformity of the products and/or services in terms of both quality and quantity.

V. TRANSFER OF OWNERSHIP AND RISKS

The transfer of ownership and risks shall be made to SMH on the date of actual delivery or upon signature of the delivery note if acceptance is provided for in the contractual documents.

VI. SHIPPING

Goods must be shipped with sufficient protection to ensure that they do not suffer any damage during transport and storage.

Each package must be clearly marked.

Packaging shall be carried out under the responsibility of the Supplier, in accordance with the regulations in force and in accordance with the usual standards of industrial packers. The Supplier shall bear all the consequences of any defect, insufficiency or unsuitability of the protection, packaging or marking of the goods.

VII. COMPLIANCE WITH DEADLINES

The stipulated deadlines are mandatory. In the event of a delay, the Supplier shall be liable for penalties equivalent to 1.2% of the total amount of the order per calendar day of delay. The parties may stipulate a different rate in special conditions.

For any delay, the Supplier will be sent a penalty notice containing information relating to the order number, the nature of the incident and the damage suffered. The Supplier shall have 48 hours from receipt of the penalty notice and accompanying documents to contest the amount of the penalties in writing to SMH and shall provide justification for such contestation. In the absence of any contestation of the penalty notice and

VIII. WARRANTIES

The Supplier warrants that all products and/or services performed and delivered under the order are new and free from any defect in design, structure, manufacture or installation and comply in all respects with the requirements of the Purchase Order and all applicable laws, regulations and other standards applicable to the products and/or services; are covered by all warranties provided for in the order and by all warranties expressly or implicitly provided for by law and regulations; are marketable; are of superior quality and, where applicable, made of first-class materials; and are suitable for the use for which they were originally designed and for the use for which they were ordered by SMH.

SMH may, at any reasonable time, inspect all products and/or services to be supplied by the Supplier under the Purchase Order, including at the premises of the Supplier and/or its subcontractors.

IX. LIABILITY – INSURANCE

The Supplier shall be liable and undertakes to compensate SMH for any material, immaterial or bodily damage caused to property or persons resulting from or in any way related to a defect, omission, fault and/or negligence on the part of the Supplier or its employees or subcontractors in the performance of the order, suffered by SMH and any third party. omission, fault and/or negligence on the part of the Supplier or its employees or subcontractors in the performance of the order, suffered by SMH, as well as by any third party, and for any prejudice, charge, loss, damage and/or any costs or expenses incurred, including those incurred by SMH to procure replacement products or services of the same nature and quality. The Supplier is also bound to SMH by virtue of its status as a specialist in the obligation to provide information and advice.

X. CONFIDENTIALITY

All information communicated by SMH to the Supplier for the execution of the order is confidential. It may not be used by the Supplier or disclosed to a third party without the prior written consent of SMH. The same shall

apply to all documents such as working drawings, sketches, plans and models that have been provided by SMH to the Supplier or that may be produced by the Supplier for the execution of the order, and which are or shall become the property of SMH by operation of law. The Supplier shall take all necessary measures to ensure that its employees, subcontractors and any suppliers comply with this confidentiality clause.

XI. HEALTH AND SAFETY

Applicable rules

The Supplier undertakes to fulfil all its legal obligations and to comply fully with all regulatory requirements in terms of health and safety.

If all or part of the services are performed on SMH's premises, the Parties undertake, in the interests of the safety of persons and property, to strictly apply the obligations arising from the Labour Code of the

Democratic Republic of Congo regarding occupational safety incumbent upon them, as well as the decrees or other regulatory sources taken into consideration in this regulation. More generally, the Parties recognized as applicable all complementary or substitute professional standards in force on the date of performance of the services relating to health and safety or health protection. In this case, the Parties also recognize as applicable to the services the provisions relating to occupational health and safety contained in SMH's Internal Regulations, as well as the

procedures relating to the same issues previously brought to the Supplier's attention.

XII. COMPLIANCE WITH REGULATIONS

The products delivered and services provided must meet the legal and regulatory requirements in force in the country for which they are intended, whether these requirements are EU/international and/or national, particularly regarding health, safety, the environment and labour law.

XIII. CANCELLATION OF THE ORDER

This order may be cancelled by SMH as of right:

In the event of non-performance by the Supplier of one of its obligations and if, within 72 hours of receipt of a notice of default, the Supplier does not remedy the default, without prejudice to SMH's right to obtain compensation for the damage it has suffered, at any time, at its convenience. In this case, the termination shall only take effect after a notice period of 10 days has been observed.

Compensation intended to offset the actual loss suffered by the Supplier because of this termination shall be paid by SMH to the Supplier, it being expressly agreed that the amount of the compensation shall not exceed 2% of the balance of the sums that the Supplier would have received in respect of the order in the absence of termination. The Supplier shall also be entitled to payment of the sums due to part of the order duly executed prior to termination.

XIV. FORCE MAJEURE

If the performance by either party of its obligations under this Agreement or the order is delayed or prevented, in whole or in part, due to the occurrence of a force majeure event, as defined by the law of the Democratic Republic of Congo or case law (hereinafter 'Force Majeure'), the party thus prevented shall be exempted, excused and released from the performance of its obligations, to the extent that it is compromised or prevented from doing so, without incurring any liability.

The party thus prevented shall notify the other Party of the occurrence of any event that may give rise to Force Majeure within 10 (ten) days of the occurrence of such an event. Within 6 (six) days of such notification, the prevented party shall provide the other party with proof that such an event is a case of Force Majeure and its probable duration; and shall notify the other party of the end of the event within 2 (two) days of the date on which such Force Majeure ended.

XV. APPLICABLE LAW – DISPUTES

These general terms and conditions and the order are subject to the law of the Democratic Republic of Congo.

Any dispute or disagreement shall be submitted to the Commercial Court of the Democratic Republic of Congo.

To which jurisdiction is expressly attributed.